

Aniruddha Kumar Pandey v. State of U.P.

Allahabad High Court · Division Bench · 16 August 2018 · WRIT - C No. - 26008 of 2018 · **Writ disposed; relegated to clause 6.5; recovery stayed 20 days**

HEADNOTE

A writ challenging an electricity bill and a Collector's recovery order is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy for a dispute as to correctness of the bill. The consumer may approach the competent authority; recovery may be kept in abeyance for a short window while that application is decided by a speaking order.

FACTUAL SUMMARY

Aniruddha Kumar Pandey petitioned the Allahabad High Court to quash the Collector, Maharajganj's order dated 6 June 2018, restrain its enforcement, direct a fresh electricity bill on meter reading, and adjust amounts he had deposited against collection dues. Recovery had been initiated against him. After two short adjournments for the Electricity Department to take instructions, the Division Bench heard the petition on 16 August 2018 as a dispute over correctness of the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill correctness — statutory remedy

HOLDING

Where the consumer disputes correctness of the bill, the High Court will not entertain a writ in view of the statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner was left to approach the appropriate authority within 10 days; that authority was to decide by a speaking order within 7 days, with recovery stayed for 20 days or until decision, whichever earlier. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging an electricity bill and a Collector's recovery order is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy for a dispute as to correctness of the bill.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND ENTITLEMENT TO A FRESH BILL ON METER READING

Left to the Clause 6.5 authority. ¶ 1

NOT DECIDED — VALIDITY OF THE COLLECTOR, MAHARAJGANJ ORDER DATED 6 JUNE 2018 AND ADJUSTMENT OF DEPOSITED AMOUNTS

Writ not decided on merits because of the available statutory remedy. ¶ 1